COMMERCIAL AGREEMENT - RECORD 003

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-003

1. Recitals and defined terms

This Statement of Work and Deployment Order is made between Helioscope Robotics, Inc. as Provider and Crestline Fulfillment Services Inc. as Customer, a e-commerce fulfilment business organised in Texas, contracting through Crestline Fulfillment Services Inc.. Crestline and the Provider have agreed that terms defined in the recitals and in Schedule 3 carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

The parties have recorded in Schedule 2 that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. Practically, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Crestline treats the obligation as a site-level matter across its 4 sites in Texas, consistent with the Statement of Work and Deployment Order. Crestline has taken the point up once since signature; the correspondence is filed against Article 18 (Assignment) and did not result in an amendment.

Crestline has agreed, and the Provider has accepted, that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. By way of qualification, performance is measured against the exhibit and not against any statement made in the parties' correspondence. The Statement of Work and Deployment Order reaches each of Crestline's 4 sites separately, which is how a e-commerce fulfilment operator in Texas administers it. Because Crestline operates in e-commerce fulfilment, the practical burden of this clause falls on its Texas operation, and Article 16 (Term and Termination) governs how it is measured.

Crestline pays the fees under Schedule 5 in consideration of the Provider's undertaking that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. As a matter of construction, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. For Crestline, a e-commerce fulfilment operator running 4 sites out of Texas, the point matters because the Statement of Work and Deployment Order is administered site by site. Crestline has taken the point up once since signature; the correspondence is filed against Article 2 (Definitions) and did not result in an amendment.

Crestline acknowledges that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. On the wording, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Operating 4 sites, Crestline applies the Statement of Work and Deployment Order at the point of delivery, as e-commerce fulfilment practice requires. For a customer of Crestline's size the clause is unremarkable, but Article 9 (Customer Obligations) is drafted more tightly here than in the Provider's standard form.

Crestline deployment order - Exhibit C - Service Levels and Credit Ladder

Crestline service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
CRE-L001	response time	96.1%	2% of monthly fee	14% of monthly fee	excluding force majeure	credit only
CRE-L002	availability	94.0%	12% of monthly fee	26% of monthly fee	excluding scheduled maintenance	credit only
CRE-L003	throughput	91.5%	2% of monthly fee	7% of monthly fee	excluding scheduled maintenance	credit then termination right
CRE-L004	throughput	92.3%	10% of monthly fee	30% of monthly fee	excluding scheduled maintenance	credit then termination right
CRE-L005	resolution time	95.9%	1% of monthly fee	10% of monthly fee	excluding Customer-caused outage	credit then termination right
CRE-L006	throughput	98.0%	3% of monthly	7% of monthly	no exclusion	credit then

Crestline service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee		termination right
CRE-L007	availability	97.8%	10% of monthly fee	13% of monthly fee	excluding scheduled maintenance	credit then termination right
CRE-L008	response time	96.8%	5% of monthly fee	22% of monthly fee	no exclusion	credit then termination right
CRE-L009	throughput	97.8%	11% of monthly fee	21% of monthly fee	excluding Customer-caused outage	credit then termination right
CRE-L010	resolution time	95.2%	6% of monthly fee	8% of monthly fee	no exclusion	credit then termination right
CRE-L011	throughput	92.4%	4% of monthly fee	6% of monthly fee	excluding force majeure	credit then termination right
CRE-L012	response time	92.8%	9% of monthly fee	27% of monthly fee	excluding force majeure	credit only
CRE-L013	availability	97.3%	3% of monthly fee	11% of monthly fee	no exclusion	credit then termination right
CRE-L014	throughput	90.2%	2% of monthly fee	12% of monthly fee	excluding Customer-caused outage	credit only
CRE-L015	resolution time	97.5%	4% of monthly fee	30% of monthly fee	excluding force majeure	credit only
CRE-L016	resolution time	94.5%	6% of monthly fee	22% of monthly fee	excluding scheduled maintenance	credit only
CRE-L017	resolution time	92.6%	2% of monthly fee	11% of monthly fee	excluding Customer-caused outage	credit then termination right
CRE-L018	resolution time	96.4%	12% of monthly fee	18% of monthly fee	no exclusion	credit only
CRE-L019	availability	91.5%	4% of monthly fee	30% of monthly fee	excluding force majeure	credit only
CRE-L020	throughput	91.7%	7% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit then termination right
CRE-L021	response time	90.5%	1% of monthly fee	30% of monthly fee	excluding force majeure	credit then termination right
CRE-L022	availability	96.9%	10% of monthly fee	15% of monthly fee	excluding scheduled maintenance	credit only
CRE-L023	throughput	96.8%	7% of monthly fee	20% of monthly fee	excluding Customer-caused outage	credit only
CRE-L024	throughput	94.9%	8% of monthly fee	16% of monthly fee	excluding Customer-caused outage	credit only
CRE-L025	response time	94.5%	4% of monthly fee	30% of monthly fee	excluding force majeure	credit then termination right
CRE-L026	throughput	93.5%	1% of monthly fee	20% of monthly fee	excluding force majeure	credit only
CRE-L027	resolution time	95.4%	6% of monthly fee	14% of monthly fee	excluding force majeure	credit then termination right
CRE-L028	response time	90.8%	7% of monthly fee	5% of monthly fee	no exclusion	credit then termination right
CRE-L029	resolution time	91.5%	12% of monthly fee	16% of monthly fee	excluding Customer-caused outage	credit only
CRE-L030	throughput	92.1%	8% of monthly fee	26% of monthly fee	excluding force majeure	credit then termination right
CRE-L031	availability	96.0%	7% of monthly fee	25% of monthly fee	excluding scheduled maintenance	credit only
CRE-L032	availability	94.1%	4% of monthly fee	10% of monthly fee	excluding scheduled maintenance	credit then termination right
CRE-L033	throughput	93.1%	9% of monthly fee	25% of monthly fee	excluding scheduled maintenance	credit only
CRE-L034	availability	93.4%	3% of monthly	26% of monthly	excluding	credit only

Crestline service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	Customer-caused outage	
CRE-L035	response time	91.5%	9% of monthly fee	22% of monthly fee	excluding Customer-caused outage	credit then termination right
CRE-L036	throughput	95.9%	8% of monthly fee	14% of monthly fee	excluding Customer-caused outage	credit only
CRE-L037	resolution time	92.1%	8% of monthly fee	25% of monthly fee	excluding Customer-caused outage	credit then termination right
CRE-L038	availability	91.6%	7% of monthly fee	20% of monthly fee	excluding force majeure	credit then termination right
CRE-L039	availability	95.0%	3% of monthly fee	29% of monthly fee	excluding Customer-caused outage	credit only
CRE-L040	response time	93.2%	10% of monthly fee	20% of monthly fee	excluding force majeure	credit only
CRE-L041	throughput	97.1%	6% of monthly fee	17% of monthly fee	excluding Customer-caused outage	credit only
CRE-L042	availability	91.6%	7% of monthly fee	15% of monthly fee	no exclusion	credit only
CRE-L043	throughput	91.5%	7% of monthly fee	9% of monthly fee	excluding scheduled maintenance	credit only
CRE-L044	throughput	93.1%	10% of monthly fee	18% of monthly fee	excluding force majeure	credit then termination right
CRE-L045	resolution time	93.5%	1% of monthly fee	30% of monthly fee	excluding Customer-caused outage	credit only
CRE-L046	availability	90.0%	8% of monthly fee	18% of monthly fee	no exclusion	credit only
CRE-L047	throughput	96.4%	12% of monthly fee	25% of monthly fee	no exclusion	credit only
CRE-L048	resolution time	98.6%	1% of monthly fee	24% of monthly fee	excluding scheduled maintenance	credit then termination right
CRE-L049	resolution time	97.3%	2% of monthly fee	16% of monthly fee	excluding scheduled maintenance	credit then termination right
CRE-L050	throughput	93.9%	10% of monthly fee	11% of monthly fee	excluding force majeure	credit then termination right
CRE-L051	availability	98.2%	4% of monthly fee	20% of monthly fee	excluding scheduled maintenance	credit only
CRE-L052	resolution time	90.2%	6% of monthly fee	9% of monthly fee	excluding scheduled maintenance	credit only
CRE-L053	resolution time	98.4%	5% of monthly fee	29% of monthly fee	excluding force majeure	credit then termination right
CRE-L054	response time	90.6%	10% of monthly fee	23% of monthly fee	excluding Customer-caused outage	credit then termination right
CRE-L055	response time	91.8%	7% of monthly fee	6% of monthly fee	no exclusion	credit only
CRE-L056	availability	90.9%	9% of monthly fee	13% of monthly fee	no exclusion	credit only
CRE-L057	throughput	91.3%	8% of monthly fee	22% of monthly fee	no exclusion	credit then termination right
CRE-L058	resolution time	94.7%	6% of monthly fee	5% of monthly fee	excluding force majeure	credit only
CRE-L059	response time	93.6%	10% of monthly fee	23% of monthly fee	excluding scheduled maintenance	credit then termination right
CRE-L060	throughput	96.1%	10% of monthly fee	5% of monthly fee	excluding Customer-caused outage	credit only
CRE-L061	resolution time	96.9%	12% of monthly	17% of monthly	excluding	credit only

Crestline service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	scheduled maintenance	
CRE-L062	throughput	96.4%	2% of monthly fee	11% of monthly fee	excluding force majeure	credit only
CRE-L063	availability	92.1%	8% of monthly fee	6% of monthly fee	excluding scheduled maintenance	credit then termination right
CRE-L064	availability	96.4%	10% of monthly fee	27% of monthly fee	excluding scheduled maintenance	credit only
CRE-L065	resolution time	98.9%	6% of monthly fee	9% of monthly fee	excluding force majeure	credit only
CRE-L066	resolution time	90.8%	7% of monthly fee	14% of monthly fee	excluding Customer-caused outage	credit only
CRE-L067	resolution time	95.3%	10% of monthly fee	27% of monthly fee	excluding scheduled maintenance	credit only
CRE-L068	throughput	98.2%	12% of monthly fee	7% of monthly fee	excluding Customer-caused outage	credit then termination right
CRE-L069	response time	98.8%	8% of monthly fee	5% of monthly fee	no exclusion	credit then termination right
CRE-L070	throughput	97.6%	12% of monthly fee	17% of monthly fee	excluding force majeure	credit only
CRE-L071	availability	98.3%	4% of monthly fee	5% of monthly fee	excluding scheduled maintenance	credit then termination right
CRE-L072	resolution time	94.3%	9% of monthly fee	15% of monthly fee	excluding Customer-caused outage	credit only
CRE-L073	response time	97.4%	9% of monthly fee	18% of monthly fee	excluding scheduled maintenance	credit only
CRE-L074	availability	95.9%	5% of monthly fee	9% of monthly fee	no exclusion	credit only
CRE-L075	throughput	95.5%	12% of monthly fee	6% of monthly fee	excluding force majeure	credit then termination right
CRE-L076	response time	96.2%	1% of monthly fee	18% of monthly fee	excluding scheduled maintenance	credit then termination right
CRE-L077	resolution time	98.2%	10% of monthly fee	16% of monthly fee	excluding scheduled maintenance	credit then termination right
CRE-L078	throughput	93.0%	10% of monthly fee	14% of monthly fee	excluding force majeure	credit only
CRE-L079	availability	90.4%	6% of monthly fee	17% of monthly fee	excluding Customer-caused outage	credit then termination right
CRE-L080	throughput	93.6%	1% of monthly fee	23% of monthly fee	excluding scheduled maintenance	credit then termination right

2. Scope of supply and orders

On a proper construction of Exhibit C, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Deliberately so: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. In e-commerce fulfilment the burden of this sits with operations, and Crestline discharges it across 4 sites under the Statement of Work and Deployment Order. The Crestline relationship is managed against Article 18 (Assignment) at each quarterly review, and any variance is minuted there rather than in the Order.

The Provider has undertaken to Crestline that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. As a remedy, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Operating 4 sites, Crestline applies the Statement of Work and Deployment Order at the point of delivery, as e-commerce fulfilment

practice requires. The Crestline file records the position as at the last amendment, and Article 20 (Notices) is the reference a reviewer should cite when raising it.

Except as Article 5 (Delivery and Title) permits, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. On the wording, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Crestline runs 4 sites from Texas in e-commerce fulfilment, so the Statement of Work and Deployment Order is administered locally and this clause is applied per site. The Crestline relationship is managed against Article 6 (Fees and Payment) at each quarterly review, and any variance is minuted there rather than in the Order.

Crestline retains the right, notwithstanding Article 4 (Orders and Quantities), to require that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. As between them, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Crestline treats the obligation as a site-level matter across its 4 sites in Texas, consistent with the Statement of Work and Deployment Order. Notices under Article 3 (Scope of Supply) go to the contracting entity named in the recital and not to any Crestline affiliate that may operate a site.

3. Delivery, title and risk

For the purposes of the Statement of Work and Deployment Order, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. On this point, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Because Crestline is a Texas e-commerce fulfilment business with 4 sites, the Statement of Work and Deployment Order devolves this to the site manager. Where Crestline has raised a query the Provider has answered by reference to Article 21 (Governing Law and Disputes), and the exchange is on the contract file.

Except as Article 4 (Orders and Quantities) permits, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. In effect, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Crestline treats the obligation as a site-level matter across its 4 sites in Texas, consistent with the Statement of Work and Deployment Order. Because Crestline operates in e-commerce fulfilment, the practical burden of this clause falls on its Texas operation, and Article 6 (Fees and Payment) governs how it is measured.

The Provider warrants to Crestline that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. In effect, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. In e-commerce fulfilment the burden of this sits with operations, and Crestline discharges it across 4 sites under the Statement of Work and Deployment Order. The obligation as it applies to Crestline was tightened at signature, and Article 5 (Delivery and Title) carries the negotiated wording rather than the standard wording.

Crestline pays the fees under Exhibit C in consideration of the Provider's undertaking that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. As agreed, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. 4 sites in Texas means Crestline applies the Statement of Work and Deployment Order through its regional operations team rather than through head office. The Crestline file records the position as at the last amendment, and Article 18 (Assignment) is the reference a reviewer should cite when raising it.

Crestline deployment order - Exhibit D - Component Prices, Lead Times and Sourcing

Crestline price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
CRE-P0001	part 4825-O	gearbox	$2,086	11	50	qualification in progress	EOL notice 6 months
CRE-P0002	part 9620-T	gearbox	$1,416	13	100	qualification in progress	EOL notice 6 months
CRE-P0003	part 3112-L	castor assembly	$2,198	9	300	dual sourced	last-time-buy notice 12 months

Crestline price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
CRE-P0004	part 5998-O	castor assembly	$433	17	550	single source	last-time-buy notice 12 months
CRE-P0005	part 2629-B	drive unit	$1,252	21	150	dual sourced	last-time-buy notice 12 months
CRE-P0006	part 6667-H	controller board	$1,536	12	300	single source	no EOL commitment
CRE-P0007	part 9603-F	gearbox	$236	18	450	single source	no EOL commitment
CRE-P0008	part 2293-K	optical sensor	$2,298	7	200	single source	EOL notice 6 months
CRE-P0009	part 8929-Y	battery module	$948	11	500	qualification in progress	no EOL commitment
CRE-P0010	part 4938-P	harness	$2,085	24	350	qualification in progress	no EOL commitment
CRE-P0011	part 2750-R	encoder	$1,754	13	200	dual sourced	last-time-buy notice 12 months
CRE-P0012	part 4771-X	gearbox	$1,737	5	300	dual sourced	EOL notice 6 months
CRE-P0013	part 4976-V	battery module	$1,413	20	100	qualification in progress	no EOL commitment
CRE-P0014	part 8232-B	optical sensor	$1,983	5	50	single source	no EOL commitment
CRE-P0015	part 3654-O	battery module	$2,239	9	300	qualification in progress	EOL notice 6 months
CRE-P0016	part 6672-T	harness	$983	8	600	dual sourced	EOL notice 6 months
CRE-P0017	part 8393-I	drive unit	$733	16	100	single source	EOL notice 6 months
CRE-P0018	part 3137-C	optical sensor	$1,568	9	350	dual sourced	EOL notice 6 months
CRE-P0019	part 4181-K	drive unit	$2,200	11	150	dual sourced	EOL notice 6 months
CRE-P0020	part 2700-H	controller board	$189	22	300	dual sourced	no EOL commitment
CRE-P0021	part 5991-Z	harness	$679	11	350	single source	last-time-buy notice 12 months
CRE-P0022	part 8529-M	encoder	$42	22	500	single source	EOL notice 6 months
CRE-P0023	part 2313-K	gearbox	$1,336	4	300	dual sourced	no EOL commitment
CRE-P0024	part 9228-Z	castor assembly	$2,043	12	500	single source	EOL notice 6 months
CRE-P0025	part 9536-F	encoder	$1,812	22	450	single source	last-time-buy notice 12 months
CRE-P0026	part 9657-W	gearbox	$2,198	21	600	dual sourced	EOL notice 6 months
CRE-P0027	part 7446-H	castor assembly	$1,638	16	400	dual sourced	EOL notice 6 months
CRE-P0028	part 2584-P	gearbox	$1,156	13	450	qualification in progress	EOL notice 6 months
CRE-P0029	part 7440-T	castor assembly	$1,202	8	550	single source	last-time-buy notice 12 months
CRE-P0030	part 8120-E	optical sensor	$921	10	50	single source	no EOL commitment
CRE-P0031	part 7148-I	encoder	$935	25	500	qualification in progress	no EOL commitment
CRE-P0032	part 3729-N	drive unit	$1,581	13	150	single source	no EOL commitment
CRE-P0033	part 5159-O	harness	$2,134	25	400	qualification in progress	last-time-buy notice 12 months
CRE-P0034	part 5273-L	gearbox	$1,597	17	250	dual sourced	no EOL commitment

Crestline price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
CRE-P0035	part 6354-D	drive unit	$709	11	600	qualification in progress	last-time-buy notice 12 months
CRE-P0036	part 3655-P	castor assembly	$40	5	600	single source	EOL notice 6 months
CRE-P0037	part 1347-J	castor assembly	$701	21	600	dual sourced	no EOL commitment
CRE-P0038	part 7066-Z	battery module	$2,270	18	200	dual sourced	no EOL commitment
CRE-P0039	part 9648-C	gearbox	$1,671	21	200	single source	EOL notice 6 months
CRE-P0040	part 4708-T	gearbox	$386	17	400	single source	no EOL commitment
CRE-P0041	part 2016-M	harness	$1,954	11	550	single source	no EOL commitment
CRE-P0042	part 3289-X	drive unit	$2,338	13	250	qualification in progress	EOL notice 6 months
CRE-P0043	part 1077-Q	encoder	$2,286	7	50	dual sourced	no EOL commitment
CRE-P0044	part 9881-E	drive unit	$543	7	250	single source	EOL notice 6 months
CRE-P0045	part 7679-J	gearbox	$1,418	8	450	dual sourced	last-time-buy notice 12 months
CRE-P0046	part 2820-R	drive unit	$915	10	150	qualification in progress	EOL notice 6 months

3. Delivery, title and risk - part 2 of 2

Below, the 3. Delivery, title and risk continues; nothing separates this part from the last except the page on which it happens to fall. The break is editorial.

Because the basis of the 3. Delivery, title and risk is unchanged, figures in this part may be compared directly with those already given. Nothing is restated from the earlier part.

Crestline deployment order - Exhibit D - Component Prices, Lead Times and Sourcing (continued, part 2 of 2)

Crestline price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
CRE-P0047	part 6947-X	gearbox	$1,747	20	200	qualification in progress	no EOL commitment
CRE-P0048	part 7541-H	encoder	$1,059	21	250	qualification in progress	EOL notice 6 months
CRE-P0049	part 8277-A	gearbox	$956	23	100	qualification in progress	EOL notice 6 months
CRE-P0050	part 4882-G	harness	$1,627	21	600	dual sourced	EOL notice 6 months
CRE-P0051	part 4062-T	drive unit	$1,188	24	350	qualification in progress	no EOL commitment
CRE-P0052	part 3559-V	harness	$1,587	6	500	qualification in progress	last-time-buy notice 12 months
CRE-P0053	part 7765-R	harness	$480	10	250	dual sourced	last-time-buy notice 12 months
CRE-P0054	part 9737-H	optical sensor	$1,651	14	250	qualification in progress	EOL notice 6 months
CRE-P0055	part 7846-L	optical sensor	$2,307	20	550	dual sourced	last-time-buy notice 12 months
CRE-P0056	part 9924-E	harness	$2,007	15	600	single source	last-time-buy notice 12 months
CRE-P0057	part 6544-I	controller board	$260	10	500	single source	no EOL commitment
CRE-P0058	part 7575-X	encoder	$2,142	15	250	qualification in progress	no EOL commitment
CRE-P0059	part 7787-U	harness	$1,226	21	350	qualification in progress	no EOL commitment

Crestline price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
CRE-P0060	part 6125-F	gearbox	$1,287	5	500	dual sourced	last-time-buy notice 12 months
CRE-P0061	part 8098-N	gearbox	$1,869	20	100	qualification in progress	no EOL commitment
CRE-P0062	part 3282-S	gearbox	$1,395	14	450	qualification in progress	last-time-buy notice 12 months
CRE-P0063	part 5723-V	battery module	$1,664	8	600	dual sourced	no EOL commitment
CRE-P0064	part 6081-O	battery module	$1,985	24	500	qualification in progress	no EOL commitment
CRE-P0065	part 7777-X	castor assembly	$1,560	12	350	dual sourced	EOL notice 6 months
CRE-P0066	part 5427-X	battery module	$2,099	4	500	single source	last-time-buy notice 12 months
CRE-P0067	part 2287-P	gearbox	$2,291	10	450	qualification in progress	no EOL commitment
CRE-P0068	part 2916-I	castor assembly	$1,848	9	100	dual sourced	no EOL commitment
CRE-P0069	part 4937-P	battery module	$1,957	18	600	qualification in progress	last-time-buy notice 12 months
CRE-P0070	part 4511-E	castor assembly	$1,113	9	600	dual sourced	no EOL commitment
CRE-P0071	part 5742-B	encoder	$678	20	400	qualification in progress	no EOL commitment
CRE-P0072	part 5518-O	castor assembly	$49	22	400	dual sourced	last-time-buy notice 12 months
CRE-P0073	part 7539-W	drive unit	$1,757	23	200	dual sourced	no EOL commitment
CRE-P0074	part 8979-I	drive unit	$1,620	10	300	qualification in progress	EOL notice 6 months
CRE-P0075	part 3063-D	controller board	$130	7	400	qualification in progress	no EOL commitment
CRE-P0076	part 9425-C	optical sensor	$284	17	300	single source	no EOL commitment
CRE-P0077	part 7931-U	battery module	$768	12	450	dual sourced	no EOL commitment
CRE-P0078	part 8120-H	encoder	$352	17	400	single source	last-time-buy notice 12 months
CRE-P0079	part 1851-V	controller board	$1,992	6	500	dual sourced	no EOL commitment
CRE-P0080	part 9704-T	gearbox	$2,068	21	50	qualification in progress	last-time-buy notice 12 months
CRE-P0081	part 7676-N	gearbox	$2,111	11	550	qualification in progress	last-time-buy notice 12 months
CRE-P0082	part 4381-T	encoder	$1,248	25	200	dual sourced	last-time-buy notice 12 months
CRE-P0083	part 9096-G	gearbox	$568	18	600	single source	no EOL commitment
CRE-P0084	part 9829-E	optical sensor	$2,002	18	150	dual sourced	last-time-buy notice 12 months
CRE-P0085	part 6093-P	gearbox	$851	20	100	single source	last-time-buy notice 12 months
CRE-P0086	part 4594-W	castor assembly	$2,420	21	450	dual sourced	EOL notice 6 months
CRE-P0087	part 3377-M	controller board	$1,987	22	100	qualification in progress	EOL notice 6 months
CRE-P0088	part 3781-J	optical sensor	$1,585	8	350	single source	EOL notice 6 months

Crestline price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
CRE-P0089	part 9140-A	castor assembly	$2,073	19	150	qualification in progress	EOL notice 6 months
CRE-P0090	part 5778-W	gearbox	$1,538	19	500	single source	no EOL commitment
CRE-P0091	part 4509-E	optical sensor	$1,027	25	200	qualification in progress	no EOL commitment
CRE-P0092	part 9832-P	encoder	$385	8	300	qualification in progress	no EOL commitment

4. Fees, invoicing and escalation

Save as Exhibit D otherwise provides, the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Deliberately so: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Because Crestline is a Texas e-commerce fulfilment business with 4 sites, the Statement of Work and Deployment Order devolves this to the site manager. For a customer of Crestline's size the clause is unremarkable, but Article 15 (Limitation of Liability) is drafted more tightly here than in the Provider's standard form.

Article 13 (Licences) provides that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. As between them, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Operating 4 sites, Crestline applies the Statement of Work and Deployment Order at the point of delivery, as e-commerce fulfilment practice requires. The Crestline file records the position as at the last amendment, and Article 12 (Intellectual Property) is the reference a reviewer should cite when raising it.

The Provider has undertaken to Crestline that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As a matter of construction, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. 4 sites in Texas means Crestline applies the Statement of Work and Deployment Order through its regional operations team rather than through head office. Because Crestline operates in e-commerce fulfilment, the practical burden of this clause falls on its Texas operation, and Article 17 (Transition Assistance) governs how it is measured.

Crestline Fulfillment Services Inc. is entitled to require that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. On the wording, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. The Statement of Work and Deployment Order reaches each of Crestline's 4 sites separately, which is how a e-commerce fulfilment operator in Texas administers it. Notices under Article 9 (Customer Obligations) go to the contracting entity named in the recital and not to any Crestline affiliate that may operate a site.

5. Service levels and credits

Nothing in Schedule 3 entitles Crestline to assume that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. In application, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. For Crestline, a e-commerce fulfilment operator running 4 sites out of Texas, the point matters because the Statement of Work and Deployment Order is administered site by site. The Crestline file records the position as at the last amendment, and Article 11 (Data and Telemetry) is the reference a reviewer should cite when raising it.

Under Article 15 (Limitation of Liability) of the Statement of Work and Deployment Order, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. In point of remedy, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Because Crestline is a Texas e-commerce fulfilment business with 4 sites, the Statement of Work and Deployment Order devolves this to the site manager. Administration of this obligation for Crestline sits with the account team rather than with central contracts, and Article 21 (Governing Law and Disputes) is where it is evidenced.

On a proper construction of Exhibit C, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. Intended effect: the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Operating 4 sites, Crestline applies the Statement of Work and Deployment Order at the point of delivery, as e-commerce fulfilment practice requires. The Crestline file records the position as at the last amendment, and Article 18 (Assignment) is the reference a reviewer should cite when raising it.

Article 7 (Service Levels) of the Statement of Work and Deployment Order is to be construed so that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. In substance, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Texas is where Crestline runs e-commerce fulfilment operations across 4 sites, and the Statement of Work and Deployment Order follows that footprint. Administration of this obligation for Crestline sits with the account team rather than with central contracts, and Article 19 (Confidentiality) is where it is evidenced.

6. Acceptance and change control

Crestline has agreed, and the Provider has accepted, that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On the wording, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 4 sites in Texas means Crestline applies the Statement of Work and Deployment Order through its regional operations team rather than through head office. Notices under Article 4 (Orders and Quantities) go to the contracting entity named in the recital and not to any Crestline affiliate that may operate a site.

Read with Exhibit C, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On this point, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Texas is where Crestline runs e-commerce fulfilment operations across 4 sites, and the Statement of Work and Deployment Order follows that footprint. Crestline has taken the point up once since signature; the correspondence is filed against Article 11 (Data and Telemetry) and did not result in an amendment.

The Provider warrants to Crestline that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. Materially, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Site count matters here: Crestline has 4 sites, and the Statement of Work and Deployment Order treats each as a separate delivery point. Where Crestline has raised a query the Provider has answered by reference to Article 16 (Term and Termination), and the exchange is on the contract file.

On a proper construction of Exhibit B, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On the negotiated text, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Because Crestline is a Texas e-commerce fulfilment business with 4 sites, the Statement of Work and Deployment Order devolves this to the site manager. The Crestline file records the position as at the last amendment, and Article 14 (Indemnities) is the reference a reviewer should cite when raising it.

Crestline deployment order - Schedule 5 - Notices, Periods and Addressees

Crestline notice type	Subject	Period	Addressee	Method	Deemed given
CRE-N001	non-renewal	35 days	designated account executive	courier only	on receipt
CRE-N002	non-renewal	70 days	Chief Operating Officer	courier and email	on the second business day after despatch
CRE-N003	non-renewal	25 days	Chief Operating Officer	courier and email	on the second business day after despatch
CRE-N004	force majeure	80 days	General Counsel	portal notice	on receipt
CRE-N005	assignment request	65 days	Chief Operating Officer	courier and email	on receipt

Crestline notice type	Subject	Period	Addressee	Method	Deemed given
CRE-N006	force majeure	80 days	designated account executive	email with acknowledgement	on receipt
CRE-N007	termination for cause	70 days	Contracts Manager	courier only	on receipt
CRE-N008	assignment request	35 days	Chief Operating Officer	courier and email	on receipt
CRE-N009	renewal election	20 days	designated account executive	courier and email	on receipt
CRE-N010	renewal election	25 days	Contracts Manager	email with acknowledgement	on despatch
CRE-N011	non-renewal	30 days	General Counsel	courier only	on despatch
CRE-N012	service credit claim	10 days	Chief Operating Officer	courier only	on the second business day after despatch
CRE-N013	breach	55 days	Chief Operating Officer	portal notice	on the second business day after despatch
CRE-N014	breach	65 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
CRE-N015	service credit claim	5 days	designated account executive	courier and email	on receipt
CRE-N016	change of control	60 days	designated account executive	portal notice	on receipt
CRE-N017	breach	40 days	Chief Operating Officer	email with acknowledgement	on despatch
CRE-N018	breach	65 days	designated account executive	courier and email	on receipt
CRE-N019	assignment request	85 days	Chief Operating Officer	courier and email	on the second business day after despatch
CRE-N020	assignment request	75 days	Contracts Manager	courier and email	on receipt
CRE-N021	price adjustment	75 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
CRE-N022	assignment request	85 days	General Counsel	portal notice	on the second business day after despatch
CRE-N023	assignment request	30 days	designated account executive	courier only	on despatch
CRE-N024	price adjustment	85 days	Chief Operating Officer	portal notice	on the second business day after despatch
CRE-N025	non-renewal	80 days	designated account executive	email with acknowledgement	on receipt
CRE-N026	force majeure	75 days	General Counsel	email with acknowledgement	on despatch
CRE-N027	force majeure	10 days	Chief Operating Officer	courier and email	on the second business day after despatch
CRE-N028	non-renewal	20 days	Chief Operating Officer	courier only	on receipt
CRE-N029	termination for cause	20 days	General Counsel	email with acknowledgement	on the second business day after despatch
CRE-N030	service credit claim	85 days	Contracts Manager	courier and email	on despatch
CRE-N031	price adjustment	85 days	designated account executive	portal notice	on receipt
CRE-N032	change of control	75 days	Chief Operating Officer	portal notice	on the second business day after despatch
CRE-N033	force majeure	55 days	designated account executive	portal notice	on receipt
CRE-N034	termination for cause	40 days	General Counsel	courier only	on the second business day after despatch
CRE-N035	change of control	30 days	designated account executive	portal notice	on the second business day after despatch
CRE-N036	force majeure	55 days	Chief Operating Officer	courier and email	on receipt

Crestline notice type	Subject	Period	Addressee	Method	Deemed given
CRE-N037	renewal election	40 days	General Counsel	courier and email	on despatch
CRE-N038	renewal election	40 days	General Counsel	portal notice	on receipt
CRE-N039	breach	5 days	designated account executive	portal notice	on despatch
CRE-N040	renewal election	70 days	Contracts Manager	email with acknowledgement	on receipt
CRE-N041	price adjustment	85 days	General Counsel	portal notice	on despatch
CRE-N042	non-renewal	15 days	General Counsel	portal notice	on receipt
CRE-N043	renewal election	40 days	Chief Operating Officer	portal notice	on receipt
CRE-N044	non-renewal	55 days	Contracts Manager	portal notice	on the second business day after despatch
CRE-N045	assignment request	50 days	designated account executive	email with acknowledgement	on the second business day after despatch
CRE-N046	force majeure	5 days	General Counsel	portal notice	on despatch
CRE-N047	price adjustment	80 days	designated account executive	courier only	on despatch
CRE-N048	non-renewal	55 days	designated account executive	portal notice	on despatch
CRE-N049	breach	35 days	designated account executive	courier and email	on the second business day after despatch
CRE-N050	service credit claim	5 days	Chief Operating Officer	portal notice	on despatch
CRE-N051	change of control	80 days	General Counsel	email with acknowledgement	on the second business day after despatch
CRE-N052	price adjustment	45 days	Chief Operating Officer	portal notice	on despatch
CRE-N053	termination for cause	20 days	Chief Operating Officer	email with acknowledgement	on despatch
CRE-N054	change of control	10 days	Chief Operating Officer	courier only	on the second business day after despatch
CRE-N055	price adjustment	70 days	General Counsel	courier and email	on despatch
CRE-N056	price adjustment	10 days	designated account executive	portal notice	on the second business day after despatch
CRE-N057	force majeure	45 days	General Counsel	courier only	on receipt
CRE-N058	change of control	55 days	General Counsel	portal notice	on the second business day after despatch
CRE-N059	non-renewal	70 days	Chief Operating Officer	email with acknowledgement	on receipt
CRE-N060	service credit claim	25 days	designated account executive	portal notice	on despatch
CRE-N061	termination for cause	75 days	Contracts Manager	portal notice	on despatch
CRE-N062	price adjustment	85 days	Contracts Manager	courier only	on receipt
CRE-N063	service credit claim	20 days	Chief Operating Officer	courier and email	on receipt
CRE-N064	service credit claim	25 days	designated account executive	courier only	on receipt
CRE-N065	non-renewal	15 days	designated account executive	email with acknowledgement	on despatch
CRE-N066	termination for cause	10 days	designated account executive	email with acknowledgement	on despatch
CRE-N067	force majeure	20 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
CRE-N068	service credit claim	55 days	General Counsel	email with acknowledgement	on despatch
CRE-N069	price adjustment	5 days	Contracts Manager	portal notice	on receipt
CRE-N070	change of control	90 days	General Counsel	courier and email	on the second business day after despatch
CRE-N071	force majeure	90 days	designated account executive	courier only	on receipt
CRE-N072	change of control	40 days	Contracts Manager	email with	on receipt

Crestline notice type	Subject	Period	Addressee	Method	Deemed given
				acknowledgement	
CRE-N073	breach	40 days	designated account executive	courier only	on receipt
CRE-N074	breach	80 days	Contracts Manager	courier and email	on the second business day after despatch
CRE-N075	service credit claim	45 days	designated account executive	courier and email	on receipt
CRE-N076	change of control	80 days	designated account executive	courier and email	on receipt
CRE-N077	price adjustment	40 days	designated account executive	courier only	on the second business day after despatch
CRE-N078	change of control	90 days	designated account executive	courier only	on the second business day after despatch

7. Data, intellectual property and licences

Crestline may require that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. Materially, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. In e-commerce fulfilment the burden of this sits with operations, and Crestline discharges it across 4 sites under the Statement of Work and Deployment Order. Crestline has taken the point up once since signature; the correspondence is filed against Article 12 (Intellectual Property) and did not result in an amendment.

Neither Crestline nor the Provider may treat Article 7 (Service Levels) as permitting confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. Tighter here than standard: where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. In e-commerce fulfilment the burden of this sits with operations, and Crestline discharges it across 4 sites under the Statement of Work and Deployment Order. Because Crestline operates in e-commerce fulfilment, the practical burden of this clause falls on its Texas operation, and Article 21 (Governing Law and Disputes) governs how it is measured.

On a proper construction of Exhibit B, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. By way of qualification, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Running 4 sites in e-commerce fulfilment, Crestline takes this obligation at site level rather than centrally under the Statement of Work and Deployment Order. Where Crestline has raised a query the Provider has answered by reference to Article 16 (Term and Termination), and the exchange is on the contract file.

Crestline bears the risk that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. In point of remedy, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Crestline runs 4 sites from Texas in e-commerce fulfilment, so the Statement of Work and Deployment Order is administered locally and this clause is applied per site. Nothing in the Crestline negotiation history qualifies Article 15 (Limitation of Liability), and a reviewer should not read the pre-signature drafts as doing so.

8. Indemnities and limitation of liability

The Provider has undertaken to Crestline that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. As to enforcement, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Because Crestline is a Texas e-commerce fulfilment business with 4 sites, the Statement of Work and Deployment Order devolves this to the site manager. Where Crestline has raised a query the Provider has answered by reference to Article 5 (Delivery and Title), and the exchange is on the contract file.

Article 16 (Term and Termination) of the Statement of Work and Deployment Order is to be construed so that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and

may procure a licence, modify, or replace to resolve it. On the operative wording, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. This bites at Crestline's 4 sites, since a e-commerce fulfilment operator administers the Statement of Work and Deployment Order where the units work. Crestline has taken the point up once since signature; the correspondence is filed against Article 12 (Intellectual Property) and did not result in an amendment.

The Provider has undertaken to Crestline that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Textually, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Running 4 sites in e-commerce fulfilment, Crestline takes this obligation at site level rather than centrally under the Statement of Work and Deployment Order. Notices under Article 11 (Data and Telemetry) go to the contracting entity named in the recital and not to any Crestline affiliate that may operate a site.

On a proper construction of Schedule 3, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. Textually, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Crestline treats the obligation as a site-level matter across its 4 sites in Texas, consistent with the Statement of Work and Deployment Order. The Crestline relationship is managed against Article 9 (Customer Obligations) at each quarterly review, and any variance is minuted there rather than in the Order.

Crestline deployment order - Exhibit A - Fee Schedule and Annual Escalator

Crestline fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
CRE-F001	AMR-400 heavy unit	30	$4,253	$127,590	2.1%	annually on the anniversary
CRE-F002	tote carrier	30	$6,919	$207,570	5.4%	annually each January
CRE-F003	tote carrier	18	$1,357	$24,426	3.6%	not escalated
CRE-F004	lift attachment	40	$4,907	$196,280	5.7%	annually each January
CRE-F005	lift attachment	40	$1,845	$73,800	5.5%	annually each January
CRE-F006	gateway appliance	27	$6,046	$163,242	2.6%	annually each January
CRE-F007	gateway appliance	8	$8,347	$66,776	5.0%	annually on the anniversary
CRE-F008	safety scanner kit	39	$1,451	$56,589	5.4%	annually on the anniversary
CRE-F009	gateway appliance	16	$7,828	$125,248	2.2%	on renewal only
CRE-F010	gateway appliance	30	$2,824	$84,720	5.3%	annually on the anniversary
CRE-F011	AMR-400 heavy unit	24	$8,453	$202,872	4.5%	annually each January
CRE-F012	lift attachment	18	$5,121	$92,178	4.6%	annually each January
CRE-F013	fleet controller	34	$4,482	$152,388	3.7%	not escalated
CRE-F014	charge dock	37	$6,081	$224,997	3.6%	annually on the anniversary
CRE-F015	AMR-400 heavy unit	23	$6,187	$142,301	4.6%	annually each January
CRE-F016	lift attachment	41	$1,252	$51,332	2.5%	on renewal only
CRE-F017	AMR-400 heavy unit	20	$2,316	$46,320	4.9%	annually each January
CRE-F018	fleet controller	36	$5,851	$210,636	5.9%	annually each January
CRE-F019	AMR-200 mobile unit	2	$2,943	$5,886	2.9%	annually each January
CRE-F020	charge dock	36	$5,224	$188,064	2.6%	annually on the anniversary
CRE-F021	safety scanner kit	15	$7,362	$110,430	2.2%	on renewal only
CRE-F022	lift attachment	16	$6,782	$108,512	5.6%	annually each January
CRE-F023	lift attachment	22	$5,555	$122,210	3.5%	annually each January

Crestline fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
CRE-F024	AMR-400 heavy unit	33	$1,578	$52,074	3.5%	annually on the anniversary
CRE-F025	fleet controller	27	$2,756	$74,412	2.7%	on renewal only
CRE-F026	lift attachment	3	$9,105	$27,315	4.7%	not escalated
CRE-F027	gateway appliance	2	$7,911	$15,822	2.1%	not escalated
CRE-F028	lift attachment	23	$8,052	$185,196	3.0%	annually each January
CRE-F029	fleet controller	29	$3,680	$106,720	3.6%	on renewal only
CRE-F030	gateway appliance	41	$2,389	$97,949	4.0%	annually on the anniversary
CRE-F031	lift attachment	32	$7,175	$229,600	5.7%	annually each January
CRE-F032	tote carrier	30	$6,531	$195,930	2.2%	not escalated
CRE-F033	gateway appliance	29	$7,171	$207,959	3.9%	annually on the anniversary
CRE-F034	AMR-200 mobile unit	20	$8,966	$179,320	2.2%	not escalated
CRE-F035	AMR-400 heavy unit	8	$6,382	$51,056	4.9%	annually on the anniversary
CRE-F036	gateway appliance	11	$1,339	$14,729	3.2%	on renewal only
CRE-F037	charge dock	4	$2,085	$8,340	3.2%	annually each January
CRE-F038	lift attachment	27	$3,105	$83,835	4.2%	on renewal only
CRE-F039	lift attachment	2	$9,187	$18,374	4.8%	annually each January
CRE-F040	safety scanner kit	22	$7,436	$163,592	2.3%	on renewal only
CRE-F041	lift attachment	22	$2,659	$58,498	2.1%	on renewal only
CRE-F042	charge dock	31	$9,527	$295,337	5.7%	annually each January
CRE-F043	charge dock	12	$4,736	$56,832	4.9%	annually on the anniversary
CRE-F044	charge dock	40	$4,823	$192,920	4.5%	not escalated
CRE-F045	safety scanner kit	11	$6,033	$66,363	2.0%	annually on the anniversary
CRE-F046	gateway appliance	9	$4,915	$44,235	5.5%	annually each January
CRE-F047	charge dock	32	$2,413	$77,216	3.3%	annually each January
CRE-F048	charge dock	39	$8,794	$342,966	5.4%	not escalated
CRE-F049	fleet controller	25	$2,562	$64,050	4.7%	not escalated
CRE-F050	AMR-200 mobile unit	14	$3,832	$53,648	2.6%	on renewal only
CRE-F051	fleet controller	39	$5,432	$211,848	3.6%	annually on the anniversary
CRE-F052	charge dock	29	$7,268	$210,772	2.8%	not escalated
CRE-F053	charge dock	12	$4,048	$48,576	2.5%	on renewal only
CRE-F054	gateway appliance	6	$5,230	$31,380	2.9%	not escalated
CRE-F055	AMR-400 heavy unit	39	$1,503	$58,617	5.8%	annually each January
CRE-F056	gateway appliance	36	$8,773	$315,828	2.0%	annually on the anniversary
CRE-F057	charge dock	15	$2,087	$31,305	5.0%	annually each January
CRE-F058	fleet controller	24	$6,479	$155,496	3.4%	annually each January
CRE-F059	safety scanner kit	29	$5,942	$172,318	5.4%	on renewal only
CRE-F060	charge dock	36	$3,579	$128,844	4.1%	annually on the anniversary
CRE-F061	fleet controller	19	$3,644	$69,236	2.6%	not escalated
CRE-F062	gateway appliance	8	$7,110	$56,880	5.8%	not escalated
CRE-F063	AMR-200 mobile unit	12	$8,512	$102,144	2.8%	annually each January
CRE-F064	gateway appliance	18	$8,022	$144,396	2.5%	annually each January
CRE-F065	safety scanner kit	9	$8,849	$79,641	4.4%	annually on the

Crestline fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
						anniversary
CRE-F066	AMR-400 heavy unit	27	$5,447	$147,069	4.5%	annually on the anniversary
CRE-F067	AMR-400 heavy unit	14	$3,667	$51,338	5.3%	not escalated
CRE-F068	gateway appliance	15	$3,508	$52,620	4.3%	annually on the anniversary
CRE-F069	tote carrier	6	$7,883	$47,298	4.1%	annually on the anniversary
CRE-F070	lift attachment	26	$7,589	$197,314	4.8%	annually on the anniversary
CRE-F071	fleet controller	40	$1,429	$57,160	2.9%	annually on the anniversary
CRE-F072	gateway appliance	8	$5,648	$45,184	5.9%	annually on the anniversary
CRE-F073	AMR-200 mobile unit	40	$5,461	$218,440	4.7%	annually each January
CRE-F074	lift attachment	34	$5,630	$191,420	5.4%	annually each January
CRE-F075	fleet controller	19	$8,559	$162,621	3.3%	on renewal only
CRE-F076	gateway appliance	6	$4,325	$25,950	2.1%	not escalated
CRE-F077	tote carrier	32	$5,875	$188,000	5.2%	annually on the anniversary
CRE-F078	safety scanner kit	27	$5,094	$137,538	2.4%	not escalated
CRE-F079	lift attachment	10	$7,115	$71,150	5.1%	on renewal only
CRE-F080	fleet controller	21	$3,241	$68,061	2.4%	annually each January
CRE-F081	AMR-400 heavy unit	20	$4,271	$85,420	3.5%	on renewal only
CRE-F082	AMR-400 heavy unit	37	$3,789	$140,193	5.6%	annually on the anniversary
CRE-F083	AMR-200 mobile unit	36	$3,146	$113,256	2.7%	annually each January
CRE-F084	fleet controller	20	$6,129	$122,580	4.7%	annually on the anniversary
CRE-F085	lift attachment	31	$7,335	$227,385	4.9%	annually on the anniversary
CRE-F086	safety scanner kit	17	$6,652	$113,084	5.6%	not escalated
CRE-F087	gateway appliance	16	$5,771	$92,336	3.4%	annually each January
CRE-F088	AMR-400 heavy unit	19	$5,443	$103,417	3.4%	on renewal only

9. Term, termination and transition

Article 18 (Assignment) provides that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. In effect, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Site count matters here: Crestline has 4 sites, and the Statement of Work and Deployment Order treats each as a separate delivery point. For a customer of Crestline's size the clause is unremarkable, but Article 6 (Fees and Payment) is drafted more tightly here than in the Provider's standard form.

Crestline is not obliged, under Schedule 2, to accept that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. As it bites, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. In e-commerce fulfilment the burden of this sits with operations, and Crestline discharges it across 4 sites under the Statement of Work and Deployment Order. Crestline has taken the point up once since signature; the correspondence is filed against Article 17 (Transition Assistance) and did not result in an amendment.

Article 19 (Confidentiality) provides that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Negotiated position: the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. This bites at Crestline's 4 sites, since a e-commerce fulfilment operator administers the Statement of Work and Deployment

Order where the units work. Where Crestline has raised a query the Provider has answered by reference to Article 11 (Data and Telemetry), and the exchange is on the contract file.

Crestline Fulfillment Services Inc. is entitled to require that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. As between them, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Running 4 sites in e-commerce fulfilment, Crestline takes this obligation at site level rather than centrally under the Statement of Work and Deployment Order. For a customer of Crestline's size the clause is unremarkable, but Article 3 (Scope of Supply) is drafted more tightly here than in the Provider's standard form.

10. Assignment, notices and general

Article 16.4 of this instrument records a departure from the Provider's standard position: a change of control of the Provider entitles the Customer to require novation to an acceptable successor or, failing that, to terminate for convenience with no termination charge. The provision was negotiated at signature and is not qualified elsewhere in the Statement of Work and Deployment Order; a reader reconciling this instrument against the Provider's standard terms should treat Article 16.4 as governing.

Crestline Fulfillment Services Inc. has notified the Provider that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. By design, performance is measured against the exhibit and not against any statement made in the parties' correspondence. This bites at Crestline's 4 sites, since a e-commerce fulfilment operator administers the Statement of Work and Deployment Order where the units work. Administration of this obligation for Crestline sits with the account team rather than with central contracts, and Article 11 (Data and Telemetry) is where it is evidenced.

On the terms of Exhibit B, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On the wording, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Operating 4 sites, Crestline applies the Statement of Work and Deployment Order at the point of delivery, as e-commerce fulfilment practice requires. Notices under Article 13 (Licences) go to the contracting entity named in the recital and not to any Crestline affiliate that may operate a site.

As between Crestline and the Provider, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Deliberately so: performance is measured against the exhibit and not against any statement made in the parties' correspondence. The Statement of Work and Deployment Order reaches each of Crestline's 4 sites separately, which is how a e-commerce fulfilment operator in Texas administers it. Crestline has taken the point up once since signature; the correspondence is filed against Article 12 (Intellectual Property) and did not result in an amendment.

Except as Article 6 (Fees and Payment) permits, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. Intended effect: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Running 4 sites in e-commerce fulfilment, Crestline takes this obligation at site level rather than centrally under the Statement of Work and Deployment Order. Notices under Article 9 (Customer Obligations) go to the contracting entity named in the recital and not to any Crestline affiliate that may operate a site.